

without a spark of interest, and if one of them die, the office is immediately extinguished (*b*). [And where under an order for maintenance two trustees were directed to pay the income of a trust fund to the mother of an infant for the maintenance of the infant during her minority, and one of the trustees died and the survivor continued the payments, it was held by the late M. R. that the trust for maintenance arose only under the order and did not survive (*c*). But this view was not acquiesced in by the Court of Appeal, where a distinction was drawn between a power and a positive direction involving no discretion (*d*).] But an executorship or administratorship survives (*e*); for "if," says Lord Talbot, "a joint estate at law will survive, why shall not a joint administration, when they both have a joint estate in it?" (*f*). So a *testamentary* guardianship vests in the survivors, for, as guardians may bring actions and avow in their own names, may grant leases during the minority of the ward, and demise copyholds even in reversion as [*262] lords *pro tempore*, it is evident they have an * interest (*a*). It follows that as co-trustees have an authority coupled with an estate or interest, their office also must be impressed with the quality of survivorship (*b*): as if land be vested in two trustees upon trust to sell and one of them dies, the other may sell (*c*); and if an advowson be conveyed to trustees upon trust to present a proper clerk, the survivors or survivor may present (*d*). Otherwise,

(*b*) *Ex parte* Lync, Cas. t. Talbot, 143.

[(*c*) *Brown v. Smith*, 10 Ch. D. 377; 46 L. J. N. S. Ch. 866.]

[(*d*) S. C. 10 Ch. D. 377, 382.]

(*e*) *Adams v. Buckland*, 2 Vern. 514; *Hudson v. Hudson*, Cas. t. Talb. 127.

(*f*) *Hudson v. Hudson*, Cas. t. Talb. 129.

(*a*) *Eyre v. Countess of Shaftesbury*, 2 P. W. 102. But if joint guardians be appointed by the Court, the office, on the death of one, is at an end; *Bradshaw v. Bradshaw*, 1 Russ. 528; *Hall v. Jones*, 2 Sim. 41.

(*b*) *Hudson v. Hudson*, Cas. t. Talb. 129, *per* Lord Talbot; Co. Lit. 113 a; *Attorney-General v. Glegg*, Amb. 585, *per* Lord Hardwicke; *Gwilliams v. Rowel*, Hard. 204; *Billingsley v. Mathew*, Toth. 168.

(*c*) See Co. Lit. 113 a; *Warburton v. Sandys*, 14 Sim. 622; *Watson v. Pearson*, 2 Exch. 594.

(*d*) See *Attorney-General v. Bishop of Litchfield*, 5 Ves. 825; *Attorney-General v. Cuming*, 2 Y. & C. C. C. 139. If two trustees employ a solicitor, the surviving trustee may obtain a decree for an account against the solicitor without making the repre-